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JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN
BENCH, MULTAN
JUDICIAL DEPARTMENT

Civil Revision No.325-D of 2022

Arshad Mehmood Akhtar

Versus

Barkat Ali (deceased) through his legal heirs & others

J U D G M E N T

Date of hearing: 27.04.2026.
Petitioner by: Mr. Muhammad Masood Bilal, Advocate.
Respondents by: Mr. Tahir Mehmood, Advocate.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through this civil revision, the petitioner has assailed the judgment and decree dated 07.03.2022 passed by the learned Additional District Judge, Burewala, whereby the judgment and decree dated 15.01.2014 rendered by the learned Trial Court were reversed and, as a consequence, the suit of respondent No.1 (since deceased, now represented through legal heirs) was decreed.

2. The factual matrix, in brief, is that respondent No.1 instituted a suit for declaration coupled with permanent injunction, challenging registered sale deed No.1018 dated 18.06.1997 and mutation No.345 dated 26.06.1997 on the allegations of fraud, want of consideration and collusion with revenue officials. The petitioner, being the beneficiary of the transaction and admittedly the nephew of the original plaintiff, contested the suit, asserting that the sale was voluntarily effected by the plaintiff after receipt of full consideration before the competent authority. Besides contesting the claim on merits, the petitioner also raised specific objections regarding limitation and maintainability of the suit.

The learned Trial Court, after framing issues and evaluating the entire evidence, dismissed the suit *vide* judgment & decree dated 15.01.2014, holding that the respondent No.1 had failed to substantiate

the plea of fraud or invalidate the registered transaction. However, the learned Appellate Court, *vide* judgment & decree dated 07.03.2022, reversed these findings and decreed the suit primarily on the premise that the petitioner failed to satisfactorily establish payment of consideration and that the circumstances surrounding the transaction cast doubt on its genuineness.

3. Learned counsel for the petitioner contends that the impugned appellate judgment is arbitrary, based on misreading and non-reading of evidence, and liable to be set aside as the learned Appellate Court reversed a well-reasoned trial Court decree without properly addressing its findings. He argues that the respondent, who alleged fraud in respect of the registered sale deed and mutation, failed to discharge the initial burden of proof as required under law, particularly when he neither appeared as a witness himself nor produced any competent evidence, and his attorney lacked direct knowledge of the transaction, thus attracting adverse inference. He adds that the documentary evidence, including the registered sale deed, thumb impressions verified through forensic report, and testimony of the Sub-Registrar and marginal witnesses, conclusively established a valid transaction in favour of the petitioner, which was unlawfully discarded by the Appellate Court. He maintains that the suit was hopelessly barred by limitation, having been filed after about fifteen years of the registered transaction, and the vague plea of recent knowledge was legally insufficient to extend limitation, yet both Courts below failed to properly decide this material issue. Lastly, he contends that the suit for declaration was not maintainable under Section 42 of the Specific Relief Act as the respondent admittedly was not in possession and had not sought consequential relief of possession, therefore the impugned judgment & decree has resulted in grave miscarriage of justice warranting interference in revisional jurisdiction.

4. Conversely, learned counsel for respondent No.1(ii) defends the impugned judgment & decree by contending that the suit property belonged to late Barkat Ali, an aged and infirm person, and the alleged sale deed and mutation in favour of the petitioner were the result of

fraud and manipulation, without any valid consideration or voluntary execution. He further argues that the petitioner, being the beneficiary, failed to discharge the burden of proving a lawful and *bona fide* transaction, particularly as no reliable evidence of payment of consideration or independent advice was produced, and material witnesses were withheld, attracting adverse inference. He submits that the respondent's evidence regarding fraud and non-receipt of sale consideration remained consistent and was not shaken in cross-examination, whereas the petitioner's evidence was contradictory and unreliable. Lastly, he contends that the learned Appellate Court rightly appreciated the evidence and interference in revisional jurisdiction is unwarranted as no illegality or perversity has been shown in the impugned judgment.

5. I have heard the learned counsel for the parties and have examined the record with due care.

6. The controversy revolves around the validity of a registered sale deed allegedly executed in favour of the petitioner. The record reveals that the petitioner produced cogent documentary and oral evidence to establish execution of the sale deed. The marginal witness supported the transaction, while the Sub-Registrar categorically deposed that the executant appeared before him, the contents of the document were read over and explained, and the executant admitted the same before affixing thumb impressions and signatures. The record is further fortified by forensic examination report, which confirms that the thumb impressions on the impugned sale deed belong to the original executant. The documentary chain is also supported by revenue record and connected entries. Once execution of a registered document stands established, the burden shifts upon the party alleging fraud to rebut the presumption through clear and convincing evidence.

7. It is a well-settled principle of law that a document duly registered by the Registration Authority in accordance with law attains the status of a legal document and carries with it a presumption of genuineness and correctness under Articles 85(5) and 129(e) of the *Qanun-e-Shahadat* Order, 1984. Such statutory presumption cannot be

displaced by a mere oral assertion unless the same is supported by strong, cogent and reliable evidence sufficient to rebut the presumption attached to the registered document. Reliance can be placed upon Rasool Bukhsh and another v. Muhammad Ramzan (2007 SCMR 85), Muhammad Idrees v. Muhammad Pervaiz (2010 SCMR 5), Muhammad Siddique (deceased) v. Mst. Noor Bibi (deceased) (2020 SCMR 483), Abdul Razaq v. Abdul Ghaffar (2020 SCMR 202), Anjuman-e-Khuddam-ul-Quran, Faisalabad v. Lt. Col (R) Najam Hameed (PLD 2020 SC 390), Abdul Aziz vs. Abdul Hameed (Deceased) through L.Rs (2022 SCMR 842), Mst. Nazeeran and others vs. Ali Bux and others 2024 SCMR 1271). In the present case, the presumption of correctness attached to the registered sale deed stands further fortified by the statement of the Sub-Registrar as well as the supporting documentary evidence on record. Consequently, the statutory burden shifted upon the respondent to rebut the said presumption in accordance with law; however, the respondent has failed to discharge this burden through any convincing, cogent or legally admissible evidence.

8. The learned Trial Court, upon appraisal of this evidence, concluded that due execution stood established and that allegations of fraud were not proved. The Appellate Court, however, discarded this evidence without identifying any legal or factual infirmity therein, and proceeded on the premise that payment of consideration was not independently proved, thereby reversing the Trial Court judgment without adequate reasoning.

9. The most significant aspect is that the plaintiff himself did not enter the witness box to substantiate allegations of fraud, despite such allegations being within his exclusive knowledge. His non-appearance, without any plausible explanation, justifies an adverse inference under Article 129(g) of the Qanun-e-Shahadat Order, 1984. Reference can be made to Naveed Akram and others v. Muhammad Anwar (2019 SCMR 1095), Muhammad Sarwar v. Mumtaz Bibi and others (2020 SCMR 276), Jahangir v. Mst. Shams Sultana & others (2022 SCMR 309), Muhammad Riaz v. Muhammad Akram and others (2024 SCMR 692),

Mehmood Khan and others vs. Sara Akhtar (2024 SCMR 178), Sher Ayaz Khan alias Sheraz Khana through L.Rs. and others v. Gul Nakeeb Khan (2025 SCMR 380) and Abdul Majeed and others vs. Mst. Khalida Bibi (deceased) through L.Rs. and others (2026 SCMR 587).

The Appellate Court failed to give due legal effect to this omission. The finding of the Appellate Court regarding non-payment of consideration is also legally unsustainable. Payment of consideration can be proved from the totality of circumstances and does not invariably require independent witness testimony. The evidence on record, including official record and consistent testimony, was sufficient to establish the transaction.

10. The transaction in question dates back to 1997, whereas the suit was instituted after approximately fifteen years. The plea of knowledge was vague, unsubstantiated, and devoid of particulars. In absence of any specific date of knowledge, such plea cannot extend the limitation. Reliance is placed upon Syed Ghulam Sarwar Shah vs. Federation of Pakistan through Secretary, Ministry of Housing and Works, Government of Pakistan, Islamabad, Pakistan and 13 others (2021 CLC 1474) and Muhammad Yasin vs. Muhammad Ismail and others (2024 CLC 922 Lahore). Moreover, the record indicates that the petitioner remained in possession of the suit property since execution of sale deed, which further weakens the respondent's claim. The suit also suffers from legal infirmity under Section 42 of the Specific Relief Act, 1877, as the respondent, not being in possession, failed to seek consequential relief of possession. The Appellate Court did not address this jurisdictional defect, which goes to the root of maintainability.

11. It is trite that the revisional jurisdiction under Section 115, C.P.C. is circumscribed; however, where findings are shown to be the result of misreading, non-reading of material evidence, or non-consideration of material questions of law resulting in miscarriage of justice, interference is not only permissible but obligatory. In the peculiar facts of the present case, the ends of justice would be best served by remanding the matter for a fresh decision. Reliance is placed upon Nazim-ud-Din and others v. Sheikh Zia-ul-Qamar and others

(2016 SCMR 24), Haji Wajdad v. Provincial Government through Secretary Board of Revenue Government of Balochistan, Quetta and others (2020 SCMR 2046) and Aamir Afzal and another vs. S. Akmal (deceased) through L.Rs. and others (2024 SCMR 1649).

12. Consequently, the instant civil revision is **allowed**. The impugned judgment and decree dated 07.03.2022, rendered by the learned Additional District Judge, Burewala, are hereby set aside, and the judgment and decree dated 15.01.2014 passed by the learned Trial Court stand restored.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

A.H.S.